

Court No. - 37

Case :- WRIT - C No. - 34524 of 2017

Petitioner :- Mohammad Shafeeq

Respondent :- U.P. Power Corporation And 4 Others

Counsel for Petitioner :- Hinchh Lal Pandey

Counsel for Respondent :- Pranjal Mehrotra

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Rajiv Lochan Mehrotra,J.

Heard learned counsel for the petitioner and Sri Pranjal Mehrotra, learned counsel for the respondent/Electricity Department.

The petitioner had earlier come up before this Court questioning the payment of electricity dues. The dispute essentially being of a billing in nature, the Court directed the petitioner to approach the Executive Engineer concerned for taking a decision thereon. The Executive Engineer has now passed an order dated 18.01.2017 defining the liability on the petitioner.

Even though the petitioner is disputing the same, we can not interfere in the billing dispute without prejudice to the rights of the petitioner to raise any such dispute before the appropriate Consumer Grievances Redressal Form. However, in case the petitioner intends to clear off the dues in installments then we provide that in the event the petitioner moves an application before the Executive Engineer in terms of Clause 6.14 of the U.P. Electricity Supply Code, 2005 then the Executive Engineer shall consider the said request of the petitioner sympathetically and make provision for easy installments to be paid by the petitioner keeping in view the fact that it is a domestic connection.

Writ petition is disposed with the said directions.

Order Date :- 3.8.2017

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